

GOVERNOR CM STATE COUNCIL

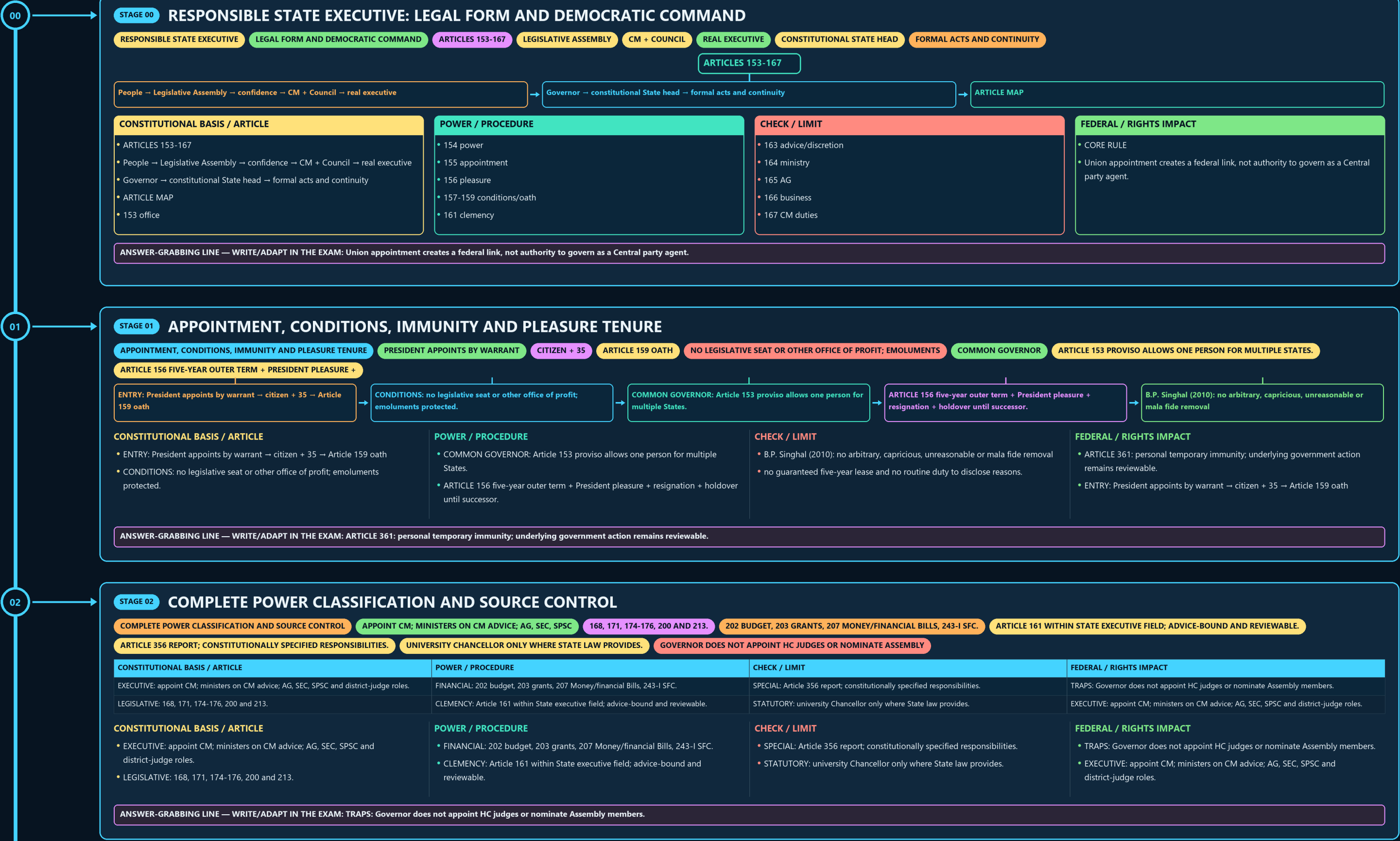
RESPONSIBLE STATE EXECUTIVE: LEGAL → APPOINTMENT, CONDITIONS, IMMUNITY AND → COMPLETE POWER CLASSIFICATION AND → AID AND ADVICE, DISCRETION → CASE-LAW LADDER: FROM ADVICE → GOVERNMENT FORMATION, FLOOR TEST

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g5 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02

COMPLETE POWER CLASSIFICATION AND SOURCE CONTROL

COMPLETE POWER CLASSIFICATION AND SOURCE CONTROL

APPOINT CM; MINISTERS ON CM ADVICE; AG, SEC, SPSC

168, 171, 174-176, 200 AND 213.

202 BUDGET, 203 GRANTS, 207 MONEY/FINANCIAL BILLS, 243-I SFC.

ARTICLE 161 WITHIN STATE EXECUTIVE FIELD; ADVICE-BOUND AND REVIEWABLE.

ARTICLE 356 REPORT; CONSTITUTIONALLY SPECIFIED RESPONSIBILITIES.

UNIVERSITY CHANCELLOR ONLY WHERE STATE LAW PROVIDES.

GOVERNOR DOES NOT APPOINT HC JUDGES OR NOMINATE ASSEMBLY

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles. LEGISLATIVE: 168, 171, 174-176, 200 and 213.	FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC. CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.	SPECIAL: Article 356 report; constitutionally specified responsibilities. STATUTORY: university Chancellor only where State law provides.	TRAPS: Governor does not appoint HC judges or nominate Assembly members. EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.

CONSTITUTIONAL BASIS / ARTICLE

- EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.
- LEGISLATIVE: 168, 171, 174-176, 200 and 213.

POWER / PROCEDURE

- FINANCIAL: 202 budget, 203 grants, 207 Money/financial Bills, 243-I SFC.
- CLEMENCY: Article 161 within State executive field; advice-bound and reviewable.

CHECK / LIMIT

- SPECIAL: Article 356 report; constitutionally specified responsibilities.
- STATUTORY: university Chancellor only where State law provides.

FEDERAL / RIGHTS IMPACT

- TRAPS: Governor does not appoint HC judges or nominate Assembly members.
- EXECUTIVE: appoint CM; ministers on CM advice; AG, SEC, SPSC and district-judge roles.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAPS: Governor does not appoint HC judges or nominate Assembly members.

03

STAGE 03

AID AND ADVICE, DISCRETION AND SPECIAL RESPONSIBILITIES

AID AND ADVICE, DISCRETION AND SPECIAL RESPONSIBILITIES

SHAMSHER SINGH (1974)

CM-LED COUNCIL ADVICE CONTROLS.

EXPRESS TEXT OR NECESSARY IMPLICATION; DISCRETION REMAINS PURPOSE-BOUND.

BOUNDED FIELDS HUNG-HOUSE APPOINTMENT

OBJECTIVE FLOOR-TEST DOUBT

ARTICLE 200 RESERVATION

ARTICLE 356 REPORT

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- DEFAULT → Shamsher Singh (1974): CM-led Council advice controls. - EXCEPTION → express text or necessary implication; discretion remains purpose-bound. - BOUNDED FIELDS hung-House appointment	- objective floor-test doubt - Article 200 reservation - Article 356 report	- UT additional charge - constitutionally specified responsibilities. - SPECIAL TEXTS	- Article 371A(1)(b): Nagaland law and order 371H(a): Arunachal law and order individual judgment after consulting Council; Sixth Schedule assigns specified functions. - LIMIT: exceptional State texts do not create general discretion for every Governor.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LIMIT: exceptional State texts do not create general discretion for every Governor.

04

STAGE 04

CASE-LAW LADDER: FROM ADVICE TO OBJECTIVE MATERIAL

CASE-LAW LADDER

FROM ADVICE TO OBJECTIVE MATERIAL

SHAMSHER SINGH (1974)

CONSTITUTIONAL HEAD; ADVICE IS NORM

S.R. BOMMAI (1994)

ARTICLE 356 REVIEW; HOUSE FLOOR ORDINARILY TESTS MAJORITY

RAMESHWAR PRASAD (2006)

SPECULATIVE HORSE-TRADING CANNOT JUSTIFY DISSOLUTION

Shamsher Singh (1974) → constitutional head; advice is norm

→

S.R. Bommai (1994) → Article 356 review; House floor ordinarily tests majority

→

Rameshwar Prasad (2006) → speculative horse-trading cannot justify dissolution

→

B.P. Singhal (2010) → pleasure survives; arbitrary removal does not

→

Nabam Rebia (2016) → Articles 174-175 normally advice-bound

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- Shamsher Singh (1974) → constitutional head; advice is norm - S.R. Bommai (1994) → Article 356 review; House floor ordinarily tests majority	- Rameshwar Prasad (2006) → speculative horse-trading cannot justify dissolution - B.P. Singhal (2010) → pleasure survives; arbitrary removal does not	- Nabam Rebia (2016) → Articles 174-175 normally advice-bound - Subhash Desai (2023) → objective material; no intra-party arbitration by floor test	- CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026. - Shamsher Singh (1974) → constitutional head; advice is norm

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

05

STAGE 05

GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

CLEAR MAJORITY

APPOINT RECOGNISED LEADER

ORDINARY RESPONSIBLE GOVERNMENT.

HUNG HOUSE

INVITE CREDIBLE CONFIDENCE CLAIMANT

EARLY FLOOR TEST

NO SECRET COUNT.

CLEAR MAJORITY → appoint recognised leader → ordinary responsible government.

→

HUNG HOUSE → invite credible confidence claimant → early floor test → no secret count.

→

LATER DOUBT → objective material → prompt floor test in Assembly.

→

AFTER TEST confidence retained → ministry continues confidence lost → resignation/dismissal → test alternative →

→

CARETAKER → continuity with restraint, not a fresh policy mandate.

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
- CLEAR MAJORITY → appoint recognised leader → ordinary responsible government. - HUNG HOUSE → invite credible confidence claimant → early floor test → no	- LATER DOUBT → objective material → prompt floor test in Assembly. - AFTER TEST confidence retained → ministry continues confidence lost → resignation/dismissal → test alternative → dissolution only if needed.	- CARETAKER → continuity with restraint, not a fresh policy mandate. - Subhash Desai (2023): factional dissent alone insufficient.	- Rameshwar Prasad (2006): anticipated misconduct cannot replace House process. - CLEAR MAJORITY → appoint recognised leader → ordinary responsible

GOVERNOR CM STATE COUNCIL • TILE 2/5 • same master rows 2248-5482 of 12224 • continues below

05

STAGE 05

GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

GOVERNMENT FORMATION, FLOOR TEST, DISMISSAL AND DISSOLUTION

CLEAR MAJORITY

APPOINT RECOGNISED LEADER

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CARETAKER → continuity with restraint, not a fresh policy mandate.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: CURRENT: referred Nabam Rebia (2016) Speaker-removal issue remains unresolved at 28 Aug 2026.

06

STAGE 06

ARTICLE 356 REPORT AND THE FEDERAL FIREWALL

ARTICLE 356 REPORT AND THE FEDERAL FIREWALL

GOVERNOR'S REASONED REPORT OR OTHER MATERIAL

PRESIDENTIAL PROCLAMATION

PARLIAMENTARY APPROVAL

TEMPORARY CONSEQUENCES

JUDICIAL REVIEW UNDER S.R. BOMMAI (1994) RELEVANCE

MALA FIDES

CONSTITUTIONAL PURPOSE

GOVERNOR'S REASONED REPORT OR OTHER MATERIAL

PRESIDENTIAL PROCLAMATION → parliamentary approval → temporary consequences

JUDICIAL REVIEW UNDER S.R. BOMMAI (1994) relevance

mala fides

constitutional purpose

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

MECHANISM / VERDICT — TRAP: Governor recommends/reports; the Governor does not proclaim President's Rule.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Governor recommends/reports; the Governor does not proclaim President's Rule.

07

STAGE 07

ARTICLES 200-201 AND THE 2025 ASSENT CONTROL

ARTICLES 200-201 AND THE 2025 ASSENT CONTROL

ARTICLE 200 ASSENT

RETURN NON-MONEY BILL ONCE

RESERVE FOR PRESIDENT MANDATORY RESERVATION

BILL ENDANGERS HIGH COURT CONSTITUTIONAL POWERS.

AFTER REPASSAGE GOVERNOR CANNOT RETURN AGAIN; EXACT REMAINING ROUTE

ARTICLE 201

DIRECT RETURN OF NON-MONEY BILL THROUGH GOVERNOR REPASSAGE DOES

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines or automatic deemed assent; prolonged unexplained inaction remains reviewable.

08

STAGE 08

ORDINANCE POWER AND CLEMENCY COMPARISON

ORDINANCE POWER AND CLEMENCY COMPARISON

ARTICLE 213 REQUIRED HOUSE(S) NOT IN SESSION + IMMEDIATE

ORDINANCE WITH ACT-LIKE FORCE

MUST BE LAID

EXPIRES SIX WEEKS AFTER REASSEMBLY UNLESS APPROVED EARLIER.

D.C. WADHWA (1986)

SERIAL RE-PROMULGATION IS FRAUD ON CONSTITUTION

KRISHNA KUMAR SINGH (2017)

07

STAGE 07

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ARTICLE 201

DIRECT RETURN OF NON-MONEY BILL THROUGH GOVERNOR REPASSAGE DOES

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 200 assent
- return non-Money Bill once
- reserve for President mandatory reservation: Bill endangers High Court constitutional powers.

POWER / PROCEDURE

- After repassage Governor cannot return again; exact remaining route is text-specific.
- ARTICLE 201
- President: assent

CHECK / LIMIT

- direct return of non-Money Bill through Governor repassage does not compel presidential assent.
- 2025 CONTROL
- State of Tamil Nadu v. Governor of Tamil Nadu (2025): facts-specific timelines/deemed assent

FEDERAL / RIGHTS IMPACT

- In re Assent, Withholding or Reservation of Bills (2025): advisory
- no rigid timelines or automatic deemed assent
- prolonged unexplained inaction remains reviewable.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: In re Assent, Withholding or Reservation of Bills (2025): advisory; no rigid timelines or automatic deemed assent; prolonged unexplained inaction remains reviewable.

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KRISHNA KUMAR SINGH (2017)

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
ARTICLE 213 required House(s) not in session + immediate necessity → ordinance with Act-like force	D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.	ARTICLE 161 V ARTICLE 72	Both ordinarily act on advice and remain reviewable for recognised defects.
must be laid → expires six weeks after reassembly unless approved earlier.	Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.	Governor: State-field offences; no court-martial limb; cannot pardon death sentence but may suspend, remit or commute it. President has wider text.	ARTICLE 213 required House(s) not in session + immediate necessity → ordinance with Act-like force

CONSTITUTIONAL BASIS / ARTICLE

- ARTICLE 213 required House(s) not in session + immediate necessity → ordinance with Act-like force
- must be laid → expires six weeks after reassembly unless approved earlier.

POWER / PROCEDURE

- D.C. Wadhwa (1986): serial re-promulgation is fraud on Constitution.
- Krishna Kumar Singh (2017): laying mandatory; satisfaction reviewable; no routine survival.

CHECK / LIMIT

- ARTICLE 161 V ARTICLE 72
- Governor: State-field offences; no court-martial limb; cannot pardon death sentence but may suspend, remit or commute it. President has wider text.

FEDERAL / RIGHTS IMPACT

- Both ordinarily act on advice and remain reviewable for recognised defects.
- ARTICLE 213 required House(s) not in session + immediate necessity → ordinance with Act-like force

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Both ordinarily act on advice and remain reviewable for recognised defects.

09

STAGE 09

CHIEF MINISTER, ARTICLE 167 AND STATE COUNCIL

CHIEF MINISTER, ARTICLE 167 AND STATE COUNCIL

GOVERNOR APPOINTS CM

CM PROVES ASSEMBLY CONFIDENCE

CM SELECTS MINISTERS

ALLOCATES PORTFOLIOS

COORDINATES POLICY

ADVISES GOVERNOR.

ARTICLE 167

GOVERNOR APPOINTS CM → CM PROVES ASSEMBLY CONFIDENCE

CM selects ministers → allocates portfolios → coordinates policy → advises Governor.

ARTICLE 167 → communicate Council decisions, furnish information, collectivise decisions.

COUNCIL UNDER ARTICLES 163-164 appoint ministers on CM advice

CONSTITUTIONAL BASIS / ARTICLE

- GOVERNOR APPOINTS CM → CM PROVES ASSEMBLY CONFIDENCE
- CM selects ministers → allocates portfolios → coordinates policy → advises Governor.

POWER / PROCEDURE

- ARTICLE 167 → communicate Council decisions, furnish information, collectivise decisions.
- COUNCIL UNDER ARTICLES 163-164 appoint ministers on CM advice

CHECK / LIMIT

- collective responsibility to Assembly individual pleasure is mediated by CM advice and confidence
- non-member: maximum six months.

FEDERAL / RIGHTS IMPACT

- 91ST AMENDMENT ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B).
- GOVERNOR APPOINTS CM → CM PROVES ASSEMBLY CONFIDENCE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 91ST AMENDMENT ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B).

10

STAGE 10

TRIBAL MINISTER, ADVOCATE GENERAL, BUSINESS AND COMPARISON

TRIBAL MINISTER, ADVOCATE GENERAL, BUSINESS AND COMPARISON

TRIBAL WELFARE MINISTER REQUIRED IN CHHATTISGARH, JHARKHAND, MADHYA PRADESH

ARTICLE 165

ADVOCATE GENERAL

HC-JUDGE QUALIFICATION; ADVISES STATE GOVERNMENT.

ARTICLE 166

AUTHENTICATION AND BUSINESS-ALLOCATION RULES; NOT PERSONAL GOVERNOR POLICY.

PRESIDENT V GOVERNOR BOTH CONSTITUTIONAL HEADS

PRESIDENT v GOVERNOR both constitutional heads	Article 74 differs textually from 163
Article 72 wider than 161	Governor reserves State Bills under 200

CONSTITUTIONAL BASIS / ARTICLE

- TRIBAL WELFARE MINISTER required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.
- ARTICLE 165 → Advocate General: HC-judge qualification; advises State Government

POWER / PROCEDURE

- PRESIDENT v GOVERNOR both constitutional heads
- Article 74 differs textually from 163
- Article 72 wider than 161

CHECK / LIMIT

- Governor reserves State Bills under 200
- Governor has State-specific special responsibilities; neither difference creates general discretion.

FEDERAL / RIGHTS IMPACT

- PRESIDENT v GOVERNOR both constitutional heads

GOVERNOR CM STATE COUNCIL • TILE 4/5 • same master rows 6742-9976 of 12224 • continues below

- CM selects ministers → allocates portfolios → coordinates policy → advises Governor.

decisions.

- COUNCIL UNDER ARTICLES 163-164 appoint ministers on CM advice

advice and confidence

- non-member: maximum six months.

under Article 164(1B).

- GOVERNOR APPOINTS CM → CM PROVES ASSEMBLY CONFIDENCE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 91ST AMENDMENT ministers <=15% of Assembly, minimum 12; defector bar under Article 164(1B).

10

STAGE 10

TRIBAL MINISTER, ADVOCATE GENERAL, BUSINESS AND COMPARISON

TRIBAL WELFARE MINISTER REQUIRED IN CHHATTISGARH, JHARKHAND, MADHYA PRADESH

ARTICLE 165

ADVOCATE GENERAL

HC-JUDGE QUALIFICATION; ADVISES STATE GOVERNMENT.

ARTICLE 166

AUTHENTICATION AND BUSINESS-ALLOCATION RULES; NOT PERSONAL GOVERNOR POLICY.

PRESIDENT V GOVERNOR BOTH CONSTITUTIONAL HEADS

PRESIDENT v GOVERNOR both constitutional heads

Article 72 wider than 161

CONSTITUTIONAL BASIS / ARTICLE

- TRIBAL WELFARE MINISTER required in Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha under Article 164 proviso.
- ARTICLE 165 → Advocate General: HC-judge qualification; advises State government.
- ARTICLE 166 → authentication and business-allocation rules; not personal Governor policy.

POWER / PROCEDURE

- PRESIDENT v GOVERNOR both constitutional heads
- Article 74 differs textually from 163
- Article 72 wider than 161

CHECK / LIMIT

- Governor reserves State Bills under 200
- Governor has State-specific special responsibilities; neither difference creates general discretion.
- CHANCELLOR: statute-specific, not inherent constitutional office.

FEDERAL / RIGHTS IMPACT

- PRESIDENT v GOVERNOR both constitutional heads

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Governor has State-specific special responsibilities; neither difference creates general discretion.

11

STAGE 11

FEDERAL NEUTRALITY, REFORMS, PYQS AND ANSWER SYNTHESIS

FEDERAL NEUTRALITY, REFORMS, PYQS AND ANSWER SYNTHESIS

FAULT LINE

UNION APPOINTMENT + PLEASURE TENURE + STATE-FACING FORMATION/ASSENT/356 POWERS.

BRIDGE CONSTITUTIONAL CONTINUITY, NEUTRAL INFORMATION, LAWFUL TRANSITION AND EMERGENCY

REFORM ROUTE

EMINENT OUTSIDER, DETACHED POLITICS, CM CONSULTATION

TRANSPARENT SELECTION, TENURE RESTRAINT, REASONED ACTION, HOUSE-CENTRED TESTS

ALL ARE PROPOSALS UNLESS ENACTED.

FAULT LINE

Union appointment + pleasure tenure + State-facing formation/assent/356 powers.

BRIDGE constitutional continuity, neutral information, lawful transition and emergency warning.

REFORM ROUTE

Sarkaria: eminent outsider, detached politics, CM consultation

CONSTITUTIONAL BASIS / ARTICLE

- FAULT LINE
- Union appointment + pleasure tenure + State-facing formation/assent/356 powers.
- BRIDGE constitutional continuity, neutral information, lawful transition and emergency warning.
- REFORM ROUTE

POWER / PROCEDURE

- Sarkaria: eminent outsider, detached politics, CM consultation
- NCRWC/Punchhi: transparent selection, tenure restraint, reasoned action, House-centred tests
- All are proposals unless enacted.
- PRELIMS: elected? NO

CHECK / LIMIT

- guaranteed five years? NO
- general discretion? NO
- Money Bill return? NO
- Chancellor constitutional? NO

FEDERAL / RIGHTS IMPACT

- Article 361 = State immunity? NO.
- MAINS SPINE text → advice default → exceptional trigger → case + year → federal risk
- matched reform → neutral constitutional-head conclusion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MAINS SPINE text → advice default → exceptional trigger → case + year → federal risk.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

A1. FORMAL VESTING, REAL AUTHORITY AND CONSTITUTIONAL TRUSTEESHIP

A2. THE POLITICAL-INFORMATION PROBLEM

A3. ASSENT AS A SEPARATION-OF-POWERS PROBLEM

A4. ANTI-DEFECTION AND FORMATION CRISES

A5. FEDERAL REFORM

LEGAL RULES VERSUS CONVENTIONS

A6. SOURCE AND FACTUAL-CONTROL NOTE

OPTIONAL DOCTRINE / CASE

- A1. Formal vesting, real authority and constitutional trusteeship
- A2. The political-information problem
- A3. Assent as a separation-of-powers problem
- A4. Anti-defection and formation crises

ADVANCED LIMIT

- A5. Federal reform: legal rules versus conventions
- A6. Source and factual-control note
- [ANALYSIS] The Governor is best described as a constitutional trustee of process, not a rival policy-maker.
- [ANALYSIS] Trusteeship requires fidelity to institutions: Assembly for confidence, political party for internal leadership, Speaker for Tenth Schedule

COMPARATIVE NUANCE

- adjudication, courts for legality and elected ministry for policy.
- [ANALYSIS] A Governor often receives asymmetric claims from parties that benefit from a particular timing.
- [ANALYSIS] The safest institutional response is to minimise private factual adjudication and move the decisive question to the public Assembly floor.
- [LIMIT] A floor test cannot cure every illegality. It does not decide the validity of a whip, disqualification petition or party constitution.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.